

Tarachand v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 8 December 2021 · Writ-C No. 25294 of 2021 · **Writ disposed; petitioner relegated to clause 6.5; recovery certificate kept in abeyance.**

HEADNOTE

A writ seeking to quash a recovery certificate and a provisional assessment notice is disposed of on the licensee's statement that the consumer may object under paragraph 6.5 of the U.P. Electricity Supply Code, 2005. Respondent no. 2 is to decide the objection after hearing within a fixed period. The recovery certificate is kept in abeyance for eight weeks or till that decision. The Court does not decide the recovery or assessment on merits.

FACTUAL SUMMARY

Tarachand petitioned the Allahabad High Court to quash a recovery certificate dated 11 December 2020 and a provisional assessment notice dated 15 October 2020, alleging that recovery had been forwarded without a final assessment order or demand notice and in breach of natural justice. The licensee's counsel submitted that the petitioner had a remedy under paragraph 6.5 of the U.P. Electricity Supply Code, 2005, and that an objection would be decided time-bound, with the recovery certificate not pressed till then.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

clause 6.5 objection as alternate remedy to writ

HOLDING

Where a consumer challenges a recovery certificate and provisional assessment notice in writ, and the licensee states that an objection under paragraph 6.5 of the U.P. Electricity Supply Code, 2005, will be decided after hearing within a time-bound period, the writ is disposed of with liberty to file that objection/representation; the recovery certificate is kept in abeyance pending the decision and is not quashed on merits. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against the recovery certificate and provisional assessment was disposed of without a merits decision, on the licensee's statement that the consumer may object under paragraph 6.5. ¶ 1

6.5-representation-as-appropriate-remedy Liberty was given to submit an objection/representation under paragraph 6.5 before respondent no. 2, to be decided after hearing within four weeks. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The disputed recovery and provisional assessment were sent to the statutory paragraph 6.5 objection, with the recovery certificate kept in abeyance pending that decision. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CERTIFICATE DATED 11.12.2020 WAS ISSUED WITHOUT A FINAL ASSESSMENT ORDER OR DEMAND NOTICE AND WAS THEREFORE ILLEGAL

¶ 1

NOT DECIDED — VALIDITY OF THE PROVISIONAL ASSESSMENT NOTICE DATED 15.10.2020 AND THE NATURAL-JUSTICE CHALLENGE ON MERITS

¶ 1

